

OFFICE OF THE SECRETARY

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March 1, 2022

The Honorable David C. Mathias
Presiding Judge of the Superior Court
County of Tulare
221 S. Mooney Boulevard, Room 303
Visalia, CA 93291

Re: Donna Lee Andrews
CDCR No: X19027
Case No: VCF142325
Date of Sentence: June 1, 2006

Dear Honorable David C. Mathias:

The purpose of this letter is to provide the court with the authority to resentence inmate Donna Andrews, X19027, pursuant to Penal Code (PC) Section 1170.03 Subdivision (a)(1), based upon her exceptional conduct while incarcerated. PC Section 1170.03, Subdivision (a)(1) provides that upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court consider and possibly recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

As the Secretary of CDCR, I take my obligation to public safety very seriously and choose only to make exceptional conduct referrals when an inmate's behavior, while incarcerated, demonstrates a sustained compliance with departmental rules and regulations, as well as prolonged participation in rehabilitative programming. These inmates have not only exhibited exceptional conduct through their ability to obey rules and regulations, but many have also demonstrated a commitment to their rehabilitation through voluntary participation in various self-help programs, vocational and educational programs, and have displayed a dedicated participation in programs such as Prison Industry Authority, Division of Rehabilitative Programs, and the Integrated Substance Use Disorder Treatment program, to name a few.

Only the Warden of the institution where the inmate is incarcerated can make a recommendation to the Secretary for consideration for resentencing referral. Once a recommendation is received, the inmate's case factors are compiled and then thoroughly reviewed by the Director of Adult Institutions. Only a select few cases are approved by the Secretary and referred to the court.

Inmate Andrews has remained disciplinary free since being received to the CDCR on June 23, 2006. Inmate Andrews is currently assigned as a Law Library Clerk. Inmate Andrews has not participated in any self-groups since January of 2020. Inmate Andrews has previously received numerous certificates and laudatory chronos from group sponsors acknowledging her prior commitment and dedication to self-awareness and improvement groups. Inmate Andrews has received three laudatory chronos from Correctional staff documenting her exceptional behavior during her incarceration.

Having reviewed the enclosed documentation it appears that inmate Andrews' sentence warrants the attention of the court. Pursuant to PC Section 1170.03, Subdivision (a)(1), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,

A handwritten signature in blue ink that reads "K. Allison".

KATHLEEN ALLISON
Secretary

Enclosures:

Abstract of Judgment

Minute Order

Court Information-Charging Documents

Cumulative Case Summary

cc: Tulare County District Attorney's Office
Tulare County Public Defender's Office